

Court No. - 21

Case :- WRIT - C No. - 39863 of 2018

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- District Consumer Forum And Another

Counsel for Petitioner :- Kapil Dev Singh Rathore

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Prakash Padia,J.

Put up this case on Tuesday i.e. 11th December, 2018, as fresh, before the appropriate Bench.

Order Date :- 5.12.2018

Digamber

Court No. - 38

Case :- WRIT - C No. - 39863 of 2018

Petitioner :- Executive Engineer Electricity Distribution
Division

Respondent :- District Cosumer Forum And Another

Counsel for Petitioner :- Kapil Dev Singh Rathore

Hon'ble Abhinava Upadhya,J.

Hon'ble Vivek Varma,J.

On the request of learned Standing Counsel, put up as fresh on
13.12.2018.

Order Date :- 11.12.2018

Lbm/-

(Vivek Varma,J.) (Abhinava Upadhya,J.)

Court No. - 38

Case :- WRIT - C No. - 39863 of 2018

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- District Consumer Forum And Another

Counsel for Petitioner :- Kapil Dev Singh Rathore

Hon'ble Abhinava Upadhyay, J.

Hon'ble Vivek Varma, J.

Heard Sri Kapil Dev Singh Rathore, learned counsel for the petitioner and learned Standing Counsel for the respondent no.3.

The petitioner, which is the Executive Engineer, Electricity Distribution Division Deoria has filed the present writ petition against the orders passed by the Consumer Forum, staying the recovery proceeding initiated against the respondent no.2 pursuant to the allegation of theft under Section 126 of the Electricity Act, 2003.

It is not disputed that the connection of the respondent no.2 is a commercial connection and therefore, it is submitted that the Consumer Forum has no jurisdiction to entertain such a complaint. It is further submitted that the Electricity Supply Code provides for remedy and therefore, the Consumer Forum has no jurisdiction.

Learned counsel for the petitioner has relied upon a decision of the Supreme Court in the case of ***Uttar Pradesh Power Corporation Ltd. and others Vs. Anis Ahamad*** reported in **2013 (8) SCC 419**. For ready reference paragraphs 59, 60, 60.1 and 60.2 are quoted herein below.

"59. The acts of indulgence in "unauthorized use of electricity" by a person, as defined in clause (b) of the Explanation below Section 126 of the Electricity Act, 2003 neither has any relationship with "unfair trade practice" or "restrictive trade practice" or "deficiency in service" nor does it amount to hazardous services by the licensee. Such acts of "unauthorized use of electricity" has nothing to do with charging price in excess of the price. Therefore, acts of person in indulging in 'unauthorized use of electricity', do not fall within the meaning of "complaint", as we have noticed above and, therefore, the "complaint" against assessment under Section 126 is not maintainable before the Consumer Forum. The Commission has already noticed that the offences referred to in

Sections 135 to 140 can be tried only by a Special Court constituted under Section 153 of the Electricity Act, 2003. In that view of the matter also the complaint against any action taken under Sections 135 to 140 of the Electricity Act, 2003 is not maintainable before the Consumer Forum.

60. In view of the observation made above, we hold that:

60.1. In case of inconsistency between the Electricity Act, 2003 and the Consumer Protection Act, 1986, the provisions of Consumer Protection Act will prevail, but ipso facto it will not vest the Consumer Forum with the power to redress any dispute with regard to the matters which do not come within the meaning of "service" as defined under Section 2(1)(o) or "complaint" as defined under Section 2(1) (c) of the Consumer Protection Act, 1986.

60.2. A "complaint" against the assessment made by assessing officer under Section 126 or against the offences committed under Sections 135 to 140 of the Electricity Act, 2003 is not maintainable before a Consumer Forum."

We have considered the submissions of Sri Rathore and learned standing Counsel and in view of the aforesaid, prima facie, it does appear that the Consumer Forum has no jurisdiction in the matter and therefore it could not have passed the impugned orders.

Issue notice to the respondent no.2 returnable at an early date, for which learned counsel for the petitioner shall take steps within a week.

The respondent no. 2 may file counter affidavit within one month.

List after service of notice.

Till the next date of listing, effect and operation of the impugned orders dated 01.08.2018 and 04.08.2018 passed by the District Consumer Forum, Deoria in Complaint Case No. 341 of 2018 shall remain stayed.

Order Date :- 13.12.2018

Lbm/-

(Vivek Varma,J.) (Abhinava Upadhyay,J.)